

January 16, 2026



Re: Outstanding Discovery Obligations

Ms. Nelson:

We are writing to address the Court's recent discovery orders and outline our expectations, and perhaps provide clarity, in the hope that it will avoid further motion practice.

On December 15, the Court granted Defendants the discovery requested in their November 5 Motion to Compel. See ECF No. 251. Additional discovery motions that you have filed following this Order have been deemed moot, ECF Nos. 263-264, and the Court has stated that it is not interested in relitigating these issues. As such, we are providing you with a list, as a courtesy, of items that you have been ordered by the Court to produce to us no later than January 30. While we genuinely hope to resolve outstanding discovery without additional involvement from the Court, we will move forward with a Motion to Compel and with a request for sanctions on Monday, February 2, if the items below are not produced in their entirety.

On January 5, you submitted a filing entitled "Plaintiff's Reply, Clarification, and Record Preservation regarding Order ECF 251" (hereinafter your "Reply"). Your Reply is essentially your statement of disagreement with the Court's Order and your expression of the mistaken belief that you do not have to respond to Defendants' discovery request, as ordered. To the extent that you believe you have already satisfied your discovery obligations, you are mistaken. To provide clarity, we will illustrate this for you below. If you fail to produce this discovery by January 30 after we have provided you with this clarification, we will move for sanctions as contemplated by the Court.

I. Your Objections to Defendants' Requests for Production, Interrogatories, and Subpoenas Have Already Been Overruled.

A Court's order on a motion to compel has the effect of overruling the objections to the underlying discovery requests, and continuing to object is defiance of the order. See e.g., *Woodbury v. Vicory Van Lines*, 2019 U.S. Dist. LEXIS 83424 (D.Md. 2019) (dismissing pro se plaintiff's case with prejudice for failure to produce discovery following a motion to compel where the court noted that defendants could move for sanctions if plaintiff did not produce all documents by a set deadline.)

The Court ordered you to provide full and complete responses to Defendants' discovery. Your arguments have already been evaluated and ruled on by the Court. See ECF No. 251 at p. 5-15.

II. Your Claims that the Court Did Not Specifically Authorize Certain Discovery is Baseless.

Throughout your Reply, you make the assertion that the Court never expressly authorized certain discovery, which is demonstrably false. To the extent that you seek to use the argument that the Court did not expressly authorize discovery in its December 15, 2025, Order to justify a failure to provide Defendants with the ordered discovery by January 30, 2026, Defendants will ask the Court for sanctions.

A. Medical & Psychotherapy Records

The Court gave you the option of either (1) abandoning your claims for emotional distress damages and intentional infliction of emotional distress and foregoing discovery as to your mental health or (2) continuing to pursue those claims in which case your mental health records are discoverable. See ECF No. 251, p. 15. You have elected to proceed with your claims for emotional distress and subsequently state in your Reply that you will provide “proportional, narrowly tailored supplementation.” This is not what you were ordered to do. The Court unequivocally ordered you to provide “full and fair discovery” regarding your claims for intentional infliction of emotional distress and/or emotional damages. (*Id.*) The Court stated that failure to do so will be viewed as “Plaintiff’s election to waive those claims.” (*Id.*) If you fail to provide the requested discovery (which includes supplemental responses to Defendants’ Requests for Production Nos. 7, 8, and 9 on or before January 30, 2026, then you will have effectively waived your claims for intentional infliction of emotional distress and emotional distress damages, and Defendants will seek dismissal of those claims and other appropriate relief.

B. Tax Returns and Income from All Sources

You state that nothing in the Court’s December 15, 2025, Order expressly authorized the disclosure of your tax returns, tax authorizations, or income from all sources. This is incorrect. The Court stated “Upon review, the undersigned agrees with Defendants. With respect to Plaintiff’s employment and financial records (i.e., her resume and the information requested in Request Nos. 6, 11, and 12, and Interrogatory Nos. 5 and 15), it is well settled that these records are relevant to the claims alleged here.” (ECF No. 251 at 8.) “Accordingly, Defendants’ Motion to Compel is **GRANTED** as to Plaintiff’s employment and financial records. Plaintiff is **ORDERED** to supplement her responses to the aforementioned requests on or before January 30, 2026.” (*Id.* at 9-10.) Request for Production No. 12 specifically requested your state and federal income tax returns from 2022 through the present and Request for Production No. 11 requested production of all sources of income you have received since November 2023. Please provide this information no later than January 30.

C. Social Media

You assert that the Court did not authorize social media discovery. This, again, is simply untrue. The Court granted Defendants’ request and stated, “the requested information regarding Plaintiff’s social media accounts is relevant and narrowly tailored to Plaintiff’s claims.” (ECF No. 251 p. 10-11.) The Court then stated, “Plaintiff should produce this information on or before January 30, 2026.” The specific information the Court ordered you to produce included responses to Request No. 1, which includes copies of any communications between you and any person related to the claims in this lawsuit (including text messages and social media posts) as well as Request No. 21, which sought any videos or social media posts related to your employment with Curtiss-Wright or your claims in this lawsuit.

D. Miscellaneous

You continue to set forth objections and excuses that the Court has already settled in the December 15, 2025, Order. You have been “**ORDERED** to independently produce to Defendants copies of the records she submitted to the Court via flash drive on or about May 13. Plaintiff shall have until January 30, 2026, to produce these records.” See ECF No. 251 p. 4-5. This means all documents on the flash drive. To date, we have received only a copy of the video posted on social media.

Likewise, you seemingly reassert that you do not have a duty to produce documents, communications, and evidence that you have produced to federal agencies. This issue also has already been extensively briefed. You have been **ORDERED** to provide Defendants “all documents [you] provided to, or received from, and all

communications [you] had with, the Office of the Naval Inspector General related to complaints she filed against Curtiss Wright on or before January 30, 2026.” See ECF No. 251, p. 10.

III. Your Outstanding Discovery Obligations

To summarize, in light of the Court’s December 15 Order, you are required to do the following before January 30, 2026:

1. You must independently produce to us copies of all records that you submitted to the Court via flash drive. See ECF No. 251 p.4.
2. You must produce all communications with individuals about this lawsuit, except for those with an attorney. These include all communications which were the basis for you telling Defense Counsel that you received information about people and events at Curtiss Wright, including, but not limited to, the instance that you received “new information” that Jeff Womack returned to work around your October 20th email to Defense Counsel despite the fact that Defense Counsel had already informed you Mr. Womack complained about you contacting him on October 13. See ECF No. 251 p.4.
3. You must produce all documents showing monetary damages (including, but not limited to, lost wages, loss of future wages, lost benefits, loss of future benefits, and litigation expenses) that support your calculation of damages. This means documents and receipts showing the accruals, not isolated numbers. See ECF No. 251 p.4.
4. You must produce all documents that reflect income, compensation, and/or earnings of any kind that you received from November 2023 through present. This means that if you received money in any form, through gift, payment, or benefits, you must provide all documents that exist to us. See ECF No. 251 p.4.
5. You must produce each and every state and federal income tax return (including W-2 forms, 1099 forms, schedules, and attachments) that you filed or intend to file from 2022 to present. See ECF No. 251 p.4.
6. You must identify all sources of income you received since your last day of employment with Defendant Curtiss-Wright, whether via employment, short-term or long-term disability benefits, social security benefits, workers’ compensation benefits, unemployment benefits, self-employment, independent contractor income, insurance payments, retirement benefits, government subsidies, or some other source, and include the amount received and the dates when you received such income. See ECF No. 251 p.4.
7. You must identify all legal entities that you own, operate, or participate as a member in, including, but not limited to, Nelson Funding Group, LLC. See ECF No. 251 p.4.
8. You must produce a copy of your current resume. See ECF No. 251 p.5.
9. You must produce all documents that you provided to or received from, and all communication with, the Office of the Naval Inspector General in relation to any complaint that you filed against Defendant Curtiss-Wright. See ECF No. 251 p.5.
10. You must identify all account(s) and/or webpage(s) with any social networking websites (including, but not limited to, X (formerly known as “Twitter”), Facebook, MySpace, LinkedIn, Snapchat, TikTok, Instagram), or any other message board(s), webpage(s), website(s), blog(s), and all usernames that you have had in your name or on your behalf since November 21, 2023, to the present, and for each

provide: a) the identifying account or username; b) the date the account was activated; c) whether the account is still active; and d) if the account is not active, the date it was deactivated and why it was deactivated. See ECF No. 251 p.5.

11. You must produce any videos or social media posts related to your employment with Curtiss-Wright or the claims in this lawsuit. See ECF No. 251 p.5.

As you have elected to pursue your claims for intentional infliction of emotional distress and/or emotional damages. Defendants are entitled to **full and fair** discovery of the claims, and you have been ordered to respond to Request Nos. 7, 8, and 9. Your failure to do so will be viewed by the Court as your election to waive your intentional infliction of emotional distress and emotional damages claims. See ECF No. 251, p. 15. The Court has noted that Defendants are authorized to seek further appropriate relief should you fail to properly supplement these responses. See ECF No. 251 n. 4. As such you must:

1. You have been ordered to produce all documents relating to or supporting your allegations that Defendants' actions resulted in your suffering mental and emotional distress. This is not a summary letter or your testimony; this is any pre-existing document showing that you suffered emotional distress caused by Defendants' actions. See ECF No. 251, p. 15.
2. You have been ordered to produce all documents referring to, reflecting, evidencing, or commenting on your physical, mental, or emotional health or condition since April 2022 to present, including, but not limited to, all opinions, reports, communications, and files from present or prior physicians, psychiatrists, psychologists, social workers, therapists, clergy, counselors, or any other professional commenting on your physical, mental, or emotional health, including tests, test results, or evaluation reports for any tests taken, and statements of charges for services rendered. See ECF No. 251, p. 15.
3. You have been ordered to produce signed copies of the psychotherapy records authorization form and medical records authorization form attached as Attachments A and B. See ECF No. 251, p. 15.

Thank you for your prompt attention to this matter. We look forward to receiving your full responses in compliance with your Court-ordered obligations. Please note that a failure to fully comply will result in another motion to compel these responses, in which case we will seek sanctions that include not only fees and costs but also exclusion of evidence and dismissal of all or some of your claims in this lawsuit.

Very truly yours,



T. Chase Samples
(864) 672-8034 Direct
Chase.Samples@jacksonlewis.com
Jackson Lewis P.C.

TCS/JVV/mab
Attachments